



CHAPTER cxlviii.

An Act to confirm a Provisional Order made by the Scotch Education Department under the Education (Scotland) Act 1878 to enable the School Board of the Burgh of Edinburgh to put in force the Lands Clauses Acts. A.D. 1904.
[1st August 1904.]

WHEREAS the Scotch Education Department have made a Provisional Order under the authority of the Education (Scotland) Act 1878 on behalf of the School Board for the Burgh of Edinburgh and it is requisite that the same should be confirmed by Parliament:

And whereas the lands required to be purchased under the powers granted by the said Provisional Order and confirmed by this Act are described in the Schedule to the said Provisional Order as set out in the Schedule to this Act and are delineated on the plan accompanying the petition referred to in the said Provisional Order and copies of the said plan have been duly deposited in the Offices of the two Houses of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The following Order as set out in the schedule to this Act shall be and is hereby confirmed and from and after the passing of this Act shall have full validity and force. Confirmation of Order in schedule.

2.—(1) The said Board shall not under the powers of this Act or of the said Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more Restriction on taking houses of labouring class.

[Ch. cxlviii.] *Scotch Education Department* [4 Edw. 7.]
Provisional Order Confirmation (Edinburgh) Act, 1904.

A.D. 1904. — houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the said Board acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the court of session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if they think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title.

3. This Act may be cited as the Scotch Education Department Provisional Order Confirmation (Edinburgh) Act 1904.

SCHEDULE.

A.D. 1904.

THE SCHOOL BOARD FOR THE BURGH OF
EDINBURGH.

PROVISIONAL ORDER FOR PUTTING IN FORCE THE LANDS
CLAUSES ACTS.

At Dover House Whitehall the 20th day of May 1904.

WHEREAS the School Board for the Burgh of Edinburgh require to purchase certain lands and property for the purposes of the Education (Scotland) Acts 1872 and 1878 and not having been able to purchase the same by agreement require to put in force the provisions of the Lands Clauses Acts which apply to the purchase and taking of lands otherwise than by agreement:

And whereas the lands and property so required to be purchased are set forth in the Schedule hereunder written:

And whereas the said Board have made due publication of the notices and have duly served the same according to the requirements of the Education (Scotland) Act 1878 and have presented a Petition to the Scotch Education Department praying that an Order may be made authorising the said School Board to put in force the powers of the said Acts with respect to the purchase and taking of lands otherwise than by agreement in which Petition were stated all the matters required by the said Education (Scotland) Act 1878 to be stated therein and the same hath been supported by such evidence as the said Scotch Education Department required:

And whereas the said Department having considered the said Petition and the proofs of the publication and service of the proper notices have thought fit to proceed with the case and have caused enquiry to be made in the district of the said Board wherein the said lands and property are situate as to the propriety of the proposed Order:

Now therefore the said Department having received a report after such enquiry and having duly considered the same do hereby declare that it is proper and do hereby order accordingly that the said Board be authorised to put in force with reference to the land and property set forth in the Schedule hereunder written the powers of the said Acts for the purchase and taking of lands otherwise than by agreement or any of them.

Signed this Twentieth day of May One thousand nine hundred and four.

(Signed) H. CRAIK

Secretary.

A.D. 1904.

SCHEDULE to the foregoing Order.

A piece of land situated on the east side of Gillespie Street and south side of Upper Gilmore Place Edinburgh containing 5,500 square yards or thereby and bounded as follows On the east by property belonging to the Roman Catholic Church along which it measures 191 feet or thereby on the south by the back greens of houses in Gillespie Crescent along which it measures 212 feet or thereby on the west by the back greens of houses in Upper Gilmore Terrace along which it measures 139 feet 6 inches or thereby then on the north by the back greens of houses in Upper Gilmore Place along which it measures 61 feet 3 inches or thereby then again on the west by the eastmost house on the south side of Upper Gilmore Place along which it measures 104 feet 6 inches or thereby on the north by Upper Gilmore Place along which it measures 143 feet or thereby then again on the west by Gillespie Street along which it measures 20 feet 6 inches or thereby and then again on the north by the southmost house on the east side of Gillespie Street along which it measures 96 feet 6 inches or thereby and consisting of five divisions or enclosures all of which belong or are reputed to belong to William Gilmore Mason and shown upon the plan accompanying the Petition hereinbefore referred to.

H. C.

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